

The Rajasthan Hatching Eggs and Day-Old-Chicks (Regulation of Production, Supply and Sale) Order, 1992

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State of Rajasthan - Act

The Rajasthan Hatching Eggs and Day-Old-Chicks (Regulation of Production, Supply and Sale) Order, 1992

RAJASTHAN

India

The Rajasthan Hatching Eggs and Day-Old-Chicks (Regulation of Production, Supply and Sale) Order, 1992

Rule

THE-RAJASTHAN-HATCHING-EGGS-AND-DAY-OLD-CHICKS-REGULATION-OF-PRODUCTION-SUPPLY-AND-SALE-ORDER-1992 of 1992

Published on 7 January 1992

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The Rajasthan Hatching Eggs and Day-Old-Chicks (Regulation of Production, Supply and Sale) Order, 1992

Published vide Notification No. F. 4(10) Animal Husbandry/ 91, dated 7-1-1992; published in Rajasthan Gazette Part 4(Ga), dated 12-3-92, page 289

G.S.R. 101. - Whereas the State Government is of the opinion that it is necessary to regulate the quality of chicks/eggs supplied from hatcheries.

Now, therefore, in exercise of the powers conferred by section 3 of the Essential Commodities Act, 1955 (Central Act 10 of 1955) read with Government of India, Ministry of Agriculture (Department of Food) Order No. G.S.R. 800, dated the

9th June, 1978 and with the prior concurrence of the Central Government, the State Government hereby makes the following order, namely:-

1.

Short title, extent and commencement.

(1)

This order may be called the Rajasthan Hatching Eggs and Day-old-Chicks (Regulation of Production, Supply and Sale) Order, 1992.

(2)

It extends to the whole of the State of Rajasthan.

(3)

It shall come into force on the date of its publication in the official Gazette.

2.

Definitions.

- In this order, unless the context otherwise requires:-

(1)

"Breeding stock" means flock of any class and of any age of poultry, used for producing hatching eggs;

(2)

"Form" means a form appended to this order;

(3)

"Licensing Authority" means officers appointed by the State Government to exercise the powers and perform the duties of the Licensing Authority under this order:

(4)

"Hatching eggs" means eggs used for production of patent of commercial chicks;

(5)

"Day-old-Chicks" means newly hatched young ones of poultry comprising of chickens, ducks, eggs, quails, turkeys and quinea fowls and includes the young one from the time of hatch till the commencement of breeding.

3.

Prohibition of sale of sub-standard, unvaccinated chicks/ eggs without registration.

- After the expiry of the period of 30 days from the commencement of this order, no dealer shall sell or distribute any chicks/eggs, unless these are as per the specifications given at the time of licensing, under this order.

(1)

No person shall carry on business of production, supply or sale of hatching egg or day-old-chicks except under and in accordance with the terms and conditions of a license issued by the Licensing Authority:

Provided that person who, at the commencement of this order, is carrying on the business or production, supply or sale of hatching eggs or day-old-chicks shall obtain a license within one month from the date of commencement of this order.

(2)

A separate license shall be necessary for each place of business.

4.

Issue of License.

(1)

Every person for grant or renewal of a license shall have to apply, in Form A to the Licensing Authority.

(2)

Every license issued or renewed under this order shall be in Form B and shall be subject to the conditions specified therein.

(3)

The Licensing Authority may, after such enquiry as it deems fit, grant or renew a license subject to the conditions specified herein or for reasons to be recorded in writing, refuse to grant or renew a license;:

Provided that no order shall be made under this clause unless the license has been given a reasonable opportunity of being heard.

(4)

Every application for renewal of license shall be made before sixty days from the date of expiry of the period specified in

the licence.

(5)

Fee for grant or renewal of license. - The fee for grant or renewal of license shall be as specified below:-

For every hatchery, having a setting capacity upto 13, 500 eggs an Annual License fee for Rs. 100/- and every additional 13,500 eggs capacity or fraction thereof Rs. 100/- subject to a maximum of Rs. 500.00. Besides, Annual License Fee of Rs. 100.00 for every 1000 breeding stock and the fraction thereof.

5.

Deposit of Security.

- Every licensee shall for due observance of conditions specified in the license, deposit, within one month from the date of issue of license a sum of rupees five thousand by way of security with the Licensing Authority in a manner acceptable to the Licensing Authority duly pledged in favour of the Licensing Authority.

6.

Contravention of conditions of License.

- No licensee or his Agent or employee or any other person acting on his behalf shall contravene any of the terms or conditions specified in the license and if any such licensee or his agent or employee or any other person acting on his behalf contravenes any of the said terms and conditions, then without prejudice to any other action that may be taken against the licensee, his license shall be cancelled or suspended by order in writing by the Licensing Authority.

7.

Forfeiture of Security Deposit.

(1)

Without prejudice to the provisions of clause 8, if the licensing authority is satisfied that the licensee has contravened any of the conditions of license and a forfeiture of the security deposit is called for, it may after giving the licensee a reasonable opportunity of being heard by order, forfeit the whole or any part of the deposit.

(2)

Upon due compliance by the licensee with all obligations under a license, the amount of Security deposit or such part thereof, which is not forfeited under sub-clause (1), shall be returned to the Licensee on termination of his license.

8.

Appeal.

(1)

Any person aggrieved by an order of Licensing Authority refusing to grant or renew a license or cancelling or suspending a license or forfeiting the security deposit under the provisions of this order, may appeal to the State Government within thirty days from the date of communication of such order.

(2)

No order shall be made under this clause unless an aggrieved person has been given reasonable opportunity of being heard.

(3)

Pending the disposal of an appeal, the State Government may at its discretion, direct that the order refusing to renew a license, or cancelling or suspending a license shall not take effect until the appeal is disposed off.

9.

Power of the Licensing Authority.

(1)

The Licensing Authority or any officer authorised by him on his behalf, may with a view to securing compliance with the provisions of this order:

(a)

require the owner, occupier or any other person in-charge of business in which or he has reason to believe that any contravention of the provisions of the order or of the conditions of any license issued there-under has been, is being or is about to be committed, to produce any book, accounts or other records showing transactions relating to such contraventions, and take or cause to be taken extract from or copies of such books, accounts or other records produced before it or him;

(b)

enter, inspect or break open and search any place of business or premises in which it or he has reason to believe that

any contravention of the provisions of this order or of the conditions of license issued thereunder has been, is being or is about to be committed:

(c)

search, seize and take into custody the breeding stock maintained and hatching eggs and day-old-chicks produced or being processed for sale otherwise than in accordance with the provisions of this order or of the conditions of license issued to him and thereon take or authorise to take all measures necessary for securing the production of the breeding stock, hatching eggs and day-old-chicks so seized in a court and for their safe custody pending such production:

(d)

Seize or detain on proper receipt, the documents, accounts books or other relevant records connected with breeding stock, the production and sale of hatching eggs or day-old-chicks in respect of which it or he has reason to believe that a contravention of this order has been, is being or is about to be committed.

(2)

The provisions of section of the code of criminal procedure (Central Act) of 199) relating to search and seizure shall, so far as may be, apply to searches and seizure under this clause.

10.

License to give facilities for inspection.

- Every licensee shall give at all reasonable times to the Licensing Authority or any officer authorised by it all facilities for the inspection of stock and accounts, at any place used by him for the production, supply and sale of hatching eggs or day-old-chicks and for the taking of samples of breeding stock, hatching eggs and day-old-chicks.

11.

Licensee to give facilities of inspection to the Licensing Authority or his duly authorised representative.

(i)

To ensure that vaccination has been done against various diseases (Schedule-2).

(ii)

To check the sanitary conditions of the hatchery and the premises, to ensure that full precautions have been taken to prevent outbreak diseases and then dissemination to other farms while supplying the birds or eggs (Schedule-C).

12.

Power to issue direction.

- Every licensee shall be bound by direction or order issued by the Licensing Authority in pursuance of any of the provisions of this order and shall comply with such direction or order, any failure on his part to comply with such direction or order shall be deemed to be a contravention of this order.

13.

On receipt of complaint from the farmers about the substandard (totally or partially) un-vaccinated/un-inoculated supply of chicks or eggs, by an authorised licensed hatchery, the licensing Authority shall have the power to take penal action against such a licensee if found guilty.

14.

In cases of default by any of the licensed hatchery, received or detected by the Licensing Authority, action against such licensee if found guilty, will be taken as per clause 6 and 7.

15.

Maintenance of records.

- Every licensee shall maintain such books, accounts and records relating to his business in such form as may be specified from time to time by the Licensing Authority in this behalf.

16.

Labelling.

- Every licensee shall in regard to the labelling of the containers of hatching eggs or day-old-chicks comply with the following requirement:

(1)

Every container in which hatching eggs or day-old-chicks are packed shall bear the number of the license, labels or marks approved by the Licensing Authority.

(2)

The labels or marks shall not contain any statement, claim, design or device which is false or misleading in any way

concerning the hatching eggs or day-old-chicks contained in a package or the value of such hatching eggs or day-old-chicks or the place of its origin.

17.

Submission of returns.

- Every licensee shall on or before the tenth of every month, submit a return to the "Licensing Authority in respect of breeding stock, hatching eggs and day-old-chicks maintained/received produced, supplied or sold by him during the previous month.

18.

Conditions regarding production of hatching eggs and Day-old- Chicks.

- Every licensee shall follow specifications specified in Schedule A, B, C, D and E appended to this order in production of hatching eggs and Day-old-Chicks.

'A'

Specification for electrically heated poultry incubators (IS:5310-1969) established and published by the Indian Standard Institution in December, 1969 together with any subsequent amendments and revisions made thereon.

'B'

Code for transport of poultry-Part-I transport of day old chicks and turkey poultry (IS:5238-Part-I 1969) established and published by the Indian Standard Institution in December, 1969 together with any subsequent amendments and revisions made thereto. Also the label affixed on the container should clearly show the following details:-

(a)

Brand Name

(b)

Hatch No./ Batch No.

(c)

Date of production/hatch.

(d)

Number packed:Eggs:Chicks:M/F/US.

(e)

Vaccination done.

2. The delivery Note/ Invoice should contain the following information also:-

(a)

Brand/ Strain/ Breed

(b)

Date of hatch

(c)

Vaccination done.

'C'

1. Breeding Stock-

(a)

Should be healthy, active and vigorous, free from Disease/ Deformities, Apparent Nutritional disorder and Deficiencies at 11 ages:

(b)

the day old chicks of breeding stock should be of the following minimum body-weight each:

White eggers

32 Gms. and above

Tinted eggers

32 Gms. and above

Brown eggers

35 Gms. and above

Broilers

38 Gms. and above

(c)

The breeder should specify the type, number and schedules of different vaccines. However, the breeding stock should invariably be covered with the following vaccination schedule.

S. No.

Name of the vaccine

Age

Remarks

1.

Mark's disease

1 day

Standard HVT vaccine soon after the removal of hatch.

2.

Reaiker Bursal

5-7 days

3.

Infectious Bursal disease (Gumbore)

12-14 days

If parent birds are not vaccinated against IBD and in areas where disease is endemic

4.

Ranikhet (F) Repeat

5.

Fowl Pox

35-40 days

6.

Ranikhet (R-B)

70-84 days

(d)

If the breeding flocks are found positive for salmonella. Micaplasma disease, the Licensing Authority on confirming the diagnosis, reserve the right to order "suitable destruction/ disposal" of the affected flock;

(e)

The flock should be fed on breeders' feed strictly conforming to the ISI standards and specification.

'D'

Hatching Eggs-

(a)

The minimum weight of each hatching egg should be as follows:-

White eggers

50 Gms. and above

Tinted eggers

50 Gms. and above

Brown eggers

52 Gms. and above

Broilers

52 Gms. and above

(b)

The hatching eggs at the time of getting should have normed sized-air-space and single-yolk and should be absolutely clean and free from thin shell. Shell cracks, air bubbles, blood and Meat spots, etc. and be free from deformities in shape:

(c)

The hatching eggs received into the state should accompany with the certificate to the effect that the hatching Eggs are from Breeding Flock, free from Salmonella, Misoplasma disease:

(d)

The hatching eggs to be loaded for incubation should not be more than ten-days of age;

(e)

The hatching eggs, if stored, should be held at 55 to 65 F. temperature and 70 to 75% relative humidity:

(f)

Strict hygienic conditions should be maintained in all the premises of hatchery operations and the breeding farm.

'E'

Commercial chicks specifications:

The chicks meant for sale and supply for commercial use should confirm to the specifications laid down in respect of the Breeding stock chicks vide Schedule-C.

Form 'A'

[See Clause 4(1)]

Application for licence under the Rajasthan Hatching Eggs and Day-Old-Chicks (Regulation of Production Supply and Sale) Order, year.

1. Name and address of the applicant.
2. Address of the hatchery.
3. Description of the hatching eggs/day-old-chicks, which the applicant desired for production and sale.
4. Plan of hatchery with lists of equipments furnishing the particulars.
5. Whether any power is used, if so, mention the number of H.P. used.

I/ We hereby undertake to comply with all the provisions of the Rajasthan Hatching Eggs and day-old-chicks (Regulation of Production, Supply and Sale) Order, 19 as issued by Rajasthan.

Place

Date

Signature of the applicant.

Form 'B'

[See Clause 4(2)]

Licence under the Rajasthan Hatching Eggs and Day-Old-Chicks (Regulation of Production, Supply and Sale) Order, Year

Licence No.

1. Name and address of the Licensee
2. Address of the authorised premises of hatchery
3. Change of premises, if any

Period of validity

Description of day old chicks

Category of hatching eggs authorised to produce

Licence fee paid

Conditions of Licence

This Licence is granted to the provisions of the Rajasthan Hatching Eggs and Day-Old-Chicks (Regulation of Production, Supply and Sale) Order, Year.

1. This Licence shall be displayed in a permanent and conspicuous place of business premises.
2. The Licence shall comply with all the directions issued by the Licensing Authority from time to time.
3. The Licence shall be valid for period of one year from the date of which it is issued unless otherwise cancelled or suspended.
4. The licence shall report to the Licensing Authority the change of place of business.

Place

Date

Licensing Authority

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